

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Elizabeth Hopkins	Team: Team # 5	CCRB Case #: 201005227	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 04/17/2010 8:30 PM	Location of Incident: § 87(2)(b)	Precinct: 44	18 Mo. SOL 10/17/2011	EO SOL 10/17/2011	
Date/Time CV Reported Tue, 04/20/2010 3:55 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/20/2010 3:55 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Lamont Gibson	05872	944594	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rafael Morales	14062	944827	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Lamont Gibson	Abuse: PO Lamont Gibson questioned § 87(2)(b)	§ 87(2)(b)
B.POM Lamont Gibson	Abuse: PO Lamont Gibson drew his gun.	§ 87(2)(b)
C.POM Lamont Gibson	Abuse: PO Lamont Gibson frisked § 87(2)(b)	§ 87(2)(b)
D.POM Lamont Gibson	Abuse: PO Lamont Gibson searched § 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on April 20, 2010 (encl. 4A-B). At 8:30 p.m. on April 17, 2010, § 87(2)(b) exited § 87(2)(b), in the Bronx. When he encountered PO Lamont Gibson, the following allegations resulted:

- **Allegation A – Abuse of Authority:** PO Lamont Gibson questioned § 87(2)(b)

§ 87(2)(g)

- **Allegation B – Abuse of Authority:** PO Lamont Gibson drew his gun. § 87(2)(g)

- **Allegation C – Abuse of Authority:** PO Lamont Gibson frisked § 87(2)(b) § 87(2)(g)

- **Allegation D – Abuse of Authority:** PO Lamont Gibson searched § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male; he is six feet tall, weighs one hundred and sixty pounds, and has brown hair and brown eyes. § 87(2)(b) is § 87(2)(b) at § 87(2)(b), in Pleasantville, NY, § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on April 29, 2010 (encl. 5A-E). On April 17, 2010, at approximately 8:30 p.m., § 87(2)(b) went to § 87(2)(b), in the Bronx, to visit a friend whom he would not identify. § 87(2)(b) did not observe any posted signs regarding visitors or access to the building; he knocked on the door but did not gain access to the building and left after four to five minutes. § 87(2)(b) exited § 87(2)(b) and crossed the street on his way to the subway. A marked police van drove up the street and stopped near § 87(2)(b). An officer whom § 87(2)(b) identified as PO Lamont Gibson, the driver, asked § 87(2)(b) where he was going. An officer determined through CCRB investigation to be PO Rafael Morales was seated in the passenger seat. § 87(2)(b) responded that he had been visiting a friend and touched his jacket pocket so as to get his cell phone. PO Gibson asked him why he was going into his pockets; he pulled out his gun and stepped out of the van. PO Gibson, while holding his gun along his side and pointed down, instructed § 87(2)(b) to put his hands onto the van. He asked § 87(2)(b) what he had been doing in the building. § 87(2)(b) put his hands against the van and explained to PO Gibson that he was attempting to visit a female friend.

PO Gibson instructed § 87(2)(b) to spread his legs and patted down his legs, torso, and pants and jacket pocket. PO Gibson asked § 87(2)(b) to turn out his pockets and as he did so, a small plastic bag containing brown residue, which § 87(2)(b) identified as crushed vitamins, was revealed inside of his front right pocket. PO Gibson said that this was cocaine or crack residue and he would be arrested. PO Gibson also said that § 87(2)(b) was under arrest § 87(2)(a) 160.50 and handcuffed § 87(2)(b). § 87(2)(b) was placed in the police van. PO Morales sat in the back of the van and watched him because the officers believed he had contraband on him. When they arrived at the stationhouse, PO Gibson searched § 87(2)(b) and asked him further questions regarding who he was going to see at § 87(2)(b).

NYPD Statements:

Subject Officer: PO LAMONT GIBSON

- *PO Lamont Gibson is a § 87(2)(b) year old black male; he is six feet tall, weighs two hundred and twenty-five pounds, and has black hair and brown eyes.*
- *On April 17, 2010, PO Gibson was assigned to Impact and worked from 5:30 p.m. to 2:05 a.m.; he was partnered with PO Morales, dressed in uniform, and assigned an unmarked motor vehicle.*

Memo Book (encl. 6A-B)

8:55 p.m.: male stop front of § 87(2)(b)

9:04 p.m.: 1 under

Complaint and Arrest Report (encl. 6C-G)

PO Gibson reported the details of § 87(2)(b)'s arrest to be as follows: § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

CCRB Statement (encl. 6H-I)

PO Gibson was interviewed at the CCRB on June 30, 2010. On April 17, 2010, PO Gibson was driving on routine patrol when he noticed § 87(2)(b) exit § 87(2)(b), which was about two car lengths away and on the passenger side of his vehicle. PO Gibson stated that he routinely looks out for violators of this building's Clean Halls Affidavit and he has conducted approximately five arrests for criminal trespass and drugs in this building in the past year. There are posted signs outside and inside of the building indicating that it is a part of the Clean Halls program and that trespassers will be arrested. PO Gibson stated that Clean Halls status gives officers the right to stop anyone who is seen exiting the building to ask if they live there or not, if they do not and cannot prove that they were visiting a resident, he or she is placed under arrest for criminal trespass.

§ 87(2)(b) walked on the sidewalk and then crossed in front the police car. PO Gibson asked, "Excuse me can you come here for a second." As § 87(2)(b) approached, his hands were in his pockets. PO Gibson asked § 87(2)(b) if he lived in the building, to which he responded that he did not. PO Gibson asked if he had friends in the building; he said that he did but did not recall the apartment in which they lived. § 87(2)(b) said that he had been in the hallway, not an apartment. PO Gibson asked § 87(2)(b) if he knew that the building was a Clean Halls building; he responded that he did not. As § 87(2)(b) answered these questions, he continued to reach his hands in his pockets. PO Gibson was not able to tell if § 87(2)(b) had anything in his pockets because he was reaching his hands inside of them and wore a puffy coat that covered his pockets.

PO Gibson stated that from his experience, individuals keep weapons in their waistbands and pockets. He instructed § 87(2)(b) four to five times to remove his hands from his pockets but § 87(2)(b) would not comply with this instruction.

After about thirty seconds, PO Gibson drew his gun and exited the van. He pointed his gun in § 87(2)(b)'s direction and instructed him to remove his hands from his pockets and place them on the police van. § 87(2)(b) was compliant with this instruction. PO Gibson stated that he feared for his safety because he did not know § 87(2)(b) or what he had on him. PO Gibson frisked § 87(2)(b) for weapons for his safety but did not feel anything during this frisk. Due to § 87(2)(b)'s responses to his questions, PO Gibson placed him under arrest § 87(2)(a) 160.50. During a search incident to lawful arrest, PO Gibson recovered a small Ziplock bag containing alleged cocaine from § 87(2)(b)'s front pants pocket. § 87(2)(b) was placed in the police van and taken to the stationhouse. In the back of the van, § 87(2)(b) continued to try to reach into his front pockets, although he was handcuffed.

Witness Officer: PO RAFAEL MORALES

- PO Rafael Morales is a § 87(2)(b) year old Hispanic male; he is six feet and one inch tall, weighs two hundred and twenty pounds, and has brown hair and brown eyes.
- On April 17, 2010, PO Morales worked from 5:30 p.m. to 2:05 a.m.; he was assigned to Impact, partnered with PO Gibson, dressed in uniform and assigned an unmarked vehicle.

Memo Book (encl. 7A-B)

9:04 p.m.: One under in front of § 87(2)(b), taken by PO Gibson

CCRB Statement (encl. 7C-D)

PO Morales was interviewed at the CCRB on July 15, 2010. § 87(2)(g). As § 87(2)(b) crossed the street, PO Gibson told him, "Come here. We want to speak to you." § 87(2)(b)'s hands were rested on his waistband, and PO Gibson told him to remove his hands from his waistband. § 87(2)(b) complied with this instruction but, as he approached, he returned his hands to his waistband. PO Gibson told him again to remove his hands and § 87(2)(b) removed them as he continued to approach. When he came to stand less than a foot from the driver's seat, he returned his hands to his waistband. PO Morales had not seen § 87(2)(b) put his hands inside of his pockets and did not notice if he had anything in his pockets, although he added that his view was partially obstructed as § 87(2)(b) stood beside the van. As PO Gibson was seated in the van, he did not discuss with § 87(2)(b) why he had been in the building or anything about the building.

After § 87(2)(b) placed his hands on the van, PO Gibson asked him if he lived in the building. § 87(2)(b) replied that he did not and PO Gibson asked what he was doing in the building, which is Clean Halls. § 87(2)(b) responded that he was visiting a friend, but would not provide the apartment number when asked. PO Gibson frisked § 87(2)(b)'s waistband, pockets, and legs for their safety but did not find any weapons. PO Morales denied that PO Gibson searched § 87(2)(b) or told him to turn his pockets inside out prior to placing him under arrest. PO Gibson asked approximately four times for § 87(2)(b) to state which apartment he was coming from. When he did not provide this information, he was placed under arrest § 87(2)(a) 160.50. As PO Gibson searched § 87(2)(b) incident to this arrest, he recovered a small ziplock bag containing alleged cocaine.

NYPD Documents

NYPD “Clean Halls” Affidavit (encl. 8A)

The affidavit, which was signed by the owner of [§ 87(2)(b)], states that from February 19, 2009 into perpetuity, members of the NYPD may enter this location at any and all hours of the day for purposes of arresting those persons found thereon who are not tenants, their family members, or invited guests.

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] has not filed a Notice of Claim with the City of New York as of December 2, 2010 with regard to the incident (encl. 10A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian’s CCRB History

- This is the first CCRB complaint to which [§ 87(2)(b)] has been a party (encl. 3A).

Subject Officer’s CCRB History

- PO Gibson has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 2A).

Conclusion

Identification of Subject Officer

PO Gibson acknowledged that he questioned, frisked, and searched [§ 87(2)(b)] and drew his gun. [§ 87(2)(g)]

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Lamont Gibson questioned [§ 87(2)(b)]

It is not in dispute that PO Gibson engaged [§ 87(2)(b)] in a common law inquiry when he asked where [§ 87(2)(b)] was going (as alleged by [§ 87(2)(b)] or if he lived or had friends in the building (as indicated by PO Gibson). PO Gibson stated that his motivation for questioning [§ 87(2)(b)] was his observation of [§ 87(2)(b)] exiting a Clean Halls Building, which was corroborated by PO Morales. According to PO Gibson, Clean Halls status gives officers the right to stop anyone who is seen exiting the building to ask if they live there or not; if they do not and cannot prove that they were visiting a resident, the individual is placed under arrest for criminal trespass.

In People v. Holland it was determined that an officer’s observation of an individual merely exiting a Trespass Affidavit Building does not provide the officer with reasonable suspicion to question that individual, absent additional factors. (5/2/97 NYLJ 31, 1997, encl. 1A-D). [§ 87(2)(g)]

§ 87(2)(g)

Allegation B – Abuse of Authority: PO Lamont Gibson drew his gun.

It is not in dispute that PO Gibson drew his gun, § 87(2)(g)

According to PO Gibson and PO Morales, § 87(2)(b) repeatedly placed his hands in his pockets and waistband area as he approached the officers and was non-compliant with PO Gibson's instructions that he present his hands. PO Gibson was unable to tell if § 87(2)(b) had anything in his pockets because § 87(2)(b)'s hands were inside of them and he wore a puffy coat that covered his pockets. PO Gibson stated that in his experience, individuals keep weapons in their waistbands and pockets, and § 87(2)(b)'s actions caused him to fear for his safety. § 87(2)(g)

Allegation C – Abuse of Authority: PO Lamont Gibson frisked § 87(2)(b)

PO Gibson acknowledged that he frisked § 87(2)(b)'s pockets and waistband because he feared for his safety after § 87(2)(b) had repeatedly placed his hands in his pockets and because he did not know § 87(2)(b) or what he had on him. § 87(2)(g)

According to *Barry Kamins New York State Search and Seizure*, an officer may not conduct a frisk solely because a suspect reaches into a pocket (encl. 1E). § 87(2)(g)

Allegation D – Abuse of Authority: PO Lamont Gibson searched § 87(2)(b)

§ 87(2)(b) alleged that, following the frisk, PO Gibson asked him to empty his pockets. PO Gibson indicated that he searched § 87(2)(b) after placing him under arrest § 87(2)(a) 160.50 and did not indicate that he instructed § 87(2)(b) to empty his pockets. PO Morales also denied that PO Gibson searched § 87(2)(b) or instructed him to empty his pockets prior to placing him under arrest. § 87(2)(g)

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date